

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FIRST SECTION

# CASE OF BIREV AND OTHERS v. RUSSIA

*(Applications nos. 28538/21 and 21 others –*
*see appended list)*

JUDGMENT

STRASBOURG

18 January 2024

*This judgment is final but it may be subject to editorial revision.*



**In the case of Birev and Others v. Russia,**

The European Court of Human Rights (First Section), sitting as a Committee composed of:

Péter Paczolay*, President*,
Gilberto Felici,
Raffaele Sabato*, judges*,
and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 14 December 2023,

Delivers the following judgment, which was adopted on that date:

# PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

# THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the disproportionate measures taken against them as organisers or participants of public assemblies. They also raised other complaints under the provisions of the Convention.

# THE LAW

## I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

## II. JURISDICTION

6. The Court observes that the facts giving rise to the alleged violations of the Convention occurred prior to 16 September 2022, the date on which the Russian Federation ceased to be a party to the Convention. The Court therefore decides that it has jurisdiction to examine the present applications (see *Fedotova and Others v. Russia* [GC], nos. 40792/10 and 2 others, §§ 68-73, 17 January 2023).

## III. ALLEGED VIOLATION OF ARTICLE 11 OF THE CONVENTION

7. The applicants complained principally of disproportionate measures taken against them as organisers or participants of public assemblies, namely their arrest in relation to the dispersal of these assemblies and their conviction for administrative offences. They relied, expressly or in substance, on Article 11 of the Convention.

8. The Court refers to the principles established in its case-law regarding freedom of assembly (see *Kudrevičius and Others v. Lithuania* [GC], no. 37553/05, ECHR 2015, with further references) and proportionality of interference with it (see *Oya Ataman v. Turkey*, no. 74552/01, ECHR 2006-XIV, and *Hyde Park and Others v. Moldova*, no. 33482/06, 31 March 2009).

9. In the leading cases of *Frumkin v. Russia,* no. 74568/12, ECHR 2016 (extracts), *Navalnyy and Yashin v. Russia,* no. 76204/11, 4 December 2014, and *Kasparov and Others v. Russia,* no. 21613/07, 3 October 2013, the Court already found a violation in respect of issues similar to those in the present case.

10. Having examined all the material submitted to it, the Court has not found any fact or argument capable of persuading it to reach a different conclusion as to the admissibility and merits of these complaints. Having regard to its case-law on the subject, the Court considers that in the instant case the interferences with the applicants' freedom of assembly were not "necessary in a democratic society".

11. These complaints are therefore admissible and disclose a breach of Article 11 of the Convention.

## IV. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

12. Some applicants submitted other complaints which also raised issues under the Convention and its Protocols, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible.

13. Having examined all the material before it, the Court concludes that these complaints also disclose violations of the Convention and its Protocols in the light of its findings in *Svinarenko and Slyadnev v. Russia* [GC], nos. 32541/08 and 43441/08, §§ 122-139, ECHR 2014 (extracts), concerning placement of applicants in a metal cage in courtrooms ; *Lashmankin and Others v. Russia*, nos. 57818/09 and 14 others, § 489, 7 February 2017, *Butkevich v. Russia*, no. 5865/07, §§ 63-65, 13 February 2018, *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 115-31, 10 April 2018, and

*Korneyeva v. Russia*, no. 72051/17, §§ 34-36, 8 October 2019, as to various aspects of unlawful deprivation of liberty of organisers or participants of public assemblies; *Karelin v. Russia*, no. 926/08, §§ 58-85, 20 September 2016, concerning the absence of a prosecuting party in the proceedings under the Code of Administrative Offences (the CAO); and *Martynyuk v. Russia*, no. 13764/15, §§ 38-42, 8 October 2019, relating to the lack of suspensive effect of an appeal against the sentence of administrative detention.

## V. REMAINING COMPLAINTS

14. Some applicants raised further additional complaints under the Convention. In view of the findings in paragraph 13 above, the Court considers that there is no need to deal separately with these remaining complaints.

## VI. APPLICATION OF ARTICLE 41 OF THE CONVENTION

15. Regard being had to the documents in its possession and to its case-law (see in particular *Navalnyy and Others v. Russia* [Committee], nos. 25809/17 and 14 others, § 22, 4 October 2022), the Court finds it reasonable to award the sums indicated in the appended table.

## FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Holds* that it has jurisdiction to deal with these applications as they relate to facts that took place before 16 September 2022;

3. *Declares* the complaints under Article 11 of the Convention and the other complaints under the well-established case-law of the Court, as set out in the appended table, admissible, and *finds* that there is no need to examine separately the remaining complaints raised by the applicants under the Convention;

4. *Holds* that these complaints disclose a breach of Article 11 of the Convention;

5. *Holds* that there has been a violation of the Convention and the Protocols thereto as regards the other complaints raised under the well-established case-law of the Court (see appended table);

6. *Holds*

(a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;

(b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 18 January 2024, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

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|---|---|
| Viktoriya Maradudina | Péter Paczolay |
| Acting Deputy Registrar | President |

# APPENDIX

## List of applications raising complaints under Article 11 of the Convention
## (disproportionate measures against organisers and participants of public assemblies)

| No. | Application no.<br>Date of introduction | Applicant's name<br>Year of birth | Representative's name and location | Name of the public event<br>Location<br>Date | Administrative charges (code of administrative proceedings, CAO) | Penalty | Final domestic decision<br>Court Name<br>Date | Other complaints under well-established case-law | Amount awarded for pecuniary and non-pecuniary damage and costs and expenses (in euros)[1] |
|---|---|---|---|---|---|---|---|---|---|
| 1. | 28538/21<br>02/06/2021 | **Nikolay Valeryevich BIREV**<br>1985 | Memorial Human Rights Centre<br>Moscow | Rally in support of Mr A. Navalnyy<br><br>Moscow<br>31/01/2021 | article 20.2 § 6.1 of CAO | fine of RUB 20,000 | Moscow City Court<br>30/03/2021 | Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 2.22 p.m. to 8.30 p.m. on 31/01/2021,<br><br>Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: Moscow City Court, 30/03/2021. | 4,000 |
| 2. | 31672/21<br>07/06/2021 | **Roman Igorevich MAKSIMOV**<br>1995 | | Rally against rise of public transport ticket price<br><br>St Petersburg<br>10/11/2019<br><br>Rally in support of Mr A. Navalnyy<br><br>Velikiy Novgorod<br>23/01/2021 | article 20.2 § 2 of CAO<br><br>article 20.2 § 8 of CAO | fine of RUB 20,000<br><br>administrative detention of 8 days | St Petersburg City Court<br>08/12/2020<br><br>Novgorod Regional Court<br>04/02/2021 | Art. 3 - use of metal cages and/or other security arrangements in courtrooms – placement of the applicant in a metal cage during the hearing before the Basmannyy District Court of Moscow on 11/05/2022,<br><br>Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances":<br>- from 2.30 p.m. on 29/01/2021 to 10.50 a.m. on 31/01/2021, hearing in the applicant's administrative-offence case,<br>- from 4.00 p.m. on 29/04/2021 to 01/05/2021, hearing in the applicant's administrative-offence case, | 9,750 |

| No. | Application no.<br>Date of introduction | Applicant's name<br>Year of birth | Representative's name and location | Name of the public event<br>Location<br>Date | Administrative charges (code of administrative proceedings, CAO) | Penalty | Final domestic decision<br>Court Name<br>Date | Other complaints under well-established case-law | Amount awarded for pecuniary and non-pecuniary damage and costs and expenses (in euros)[1] |
|---|---|---|---|---|---|---|---|---|---|
| | | | | | | | | Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decisions: St Petersburg City Court, 08/12/2020, and Novgorod Regional Court, 04/02/2021 and 06/05/2021,<br><br>Art. 10 (1) - conviction for making calls to participate in public events - calls, on 20/04/2021, on internet, for support of Mr A. Navalnyy scheduled for 21/04/2021 in Velikiy Novgorod, conviction under art. 20.2 § 8 of the CAO, 15 days of administrative detention. Final decision: Novgorod Regional Court, 06/05/2021. | |
| 3. | 32173/21<br>11/06/2021 | **Aleksey Georgiyevich ZAYTSEV**<br>1982 | Memorial Human Rights Centre<br>Moscow | Rally in support of Mr A. Navalnyy<br><br>Moscow<br>31/01/2021 | article 20.2 § 6.1 of CAO | fine of RUB 20,000 | Moscow City Court<br>16/03/2021 | Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 5.50 p.m. on 31/01/2021 to 9.30 a.m. on 01/02/2021; the applicant spent more than 5 hours in the police van,<br><br>Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: Moscow City Court, 16/03/2021 | 5,000 |
| 4. | 35193/21<br>18/06/2021 | **Aleksey Aleksandrovich STEPANOV**<br>2002 | | Rally in support of Mr A. Navalnyy<br><br>Moscow<br>17/01/2021<br><br>Rally against the war in Ukraine | article 20.2 § 6.1 of CAO<br><br>article 20.2 § 8 of CAO | fine of RUB 15,000<br><br>administrative detention of 10 days | Moscow City Court<br>14/04/2021<br><br>Moscow City Court<br>04/03/2022 | Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances":<br>- from 7.45 p.m. on 17/01/2021 to 2.30 a.m. on 18/01/2021, while the said record had been drawn only on 27/01/2021,<br>- from 7.50 p.m. on 24/02/2022 to 4.55 p.m. on 25/02/2023, hearing in the applicant's administrative-offence case, | 5,000 |

| No. | Application no.<br>Date of introduction | Applicant's name<br>Year of birth | Representative's name and location | Name of the public event<br>Location<br>Date | Administrative charges (code of administrative proceedings, CAO) | Penalty | Final domestic decision<br>Court Name<br>Date | Other complaints under well-established case-law | Amount awarded for pecuniary and non-pecuniary damage and costs and expenses (in euros)[1] |
|---|---|---|---|---|---|---|---|---|---|
| | | | | Moscow<br>24/02/2022 | | | | Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decisions: Moscow City Court, 14/04/2021 and 04/03/2022,<br><br>Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant by the court of first instance was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO. | |
| 5. | 36381/21<br>30/06/2021 | **Aleksandr Viktorovich SHAPOVALOV**<br>1978 | Memorial Human Rights Centre<br>Moscow | Rally in support of Mr A. Navalnyy<br><br>Moscow<br>02/02/2021 | article 20.2 § 5 of CAO | fine of RUB 20,000 | Moscow City Court<br>21/05/2021 | Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 10.30 a.m. to 5.15 p.m. on 02/02/2021,<br><br>Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: Moscow City Court, 21/05/2021. | 4,000 |
| 6. | 36397/21<br>25/06/2021<br>(3 applicants) | **1) Pavel Pavlovich BORODETSKIY**<br>1981<br><br>**2) Andrey Mikhaylovich IVASHEV**<br>1991<br><br>**3) Dmitriy Vladimirovich KUDASHEV**<br>1977 | Mezak Ernest Aleksandrovich Saint-Barthélemy-d'Anjou | Rally in support of Mr A. Navalnyy<br><br>Syktyvkar<br>31/01/2021 | article 20.2 § 5 of CAO | fine of RUB 10,000 for each applicant | Supreme Court of the Komi Republic, 31/03/2021, 17/03/2021 and 24/03/2021 | Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", on 31/01/2021:<br>- from 1.30 p.m. to 09.00 p.m. (1st applicant),<br>- from 2.00 p.m. to 10.00 p.m. (2nd applicant),<br>- from 1.25 p.m. to 9.35 p.m. (3rd applicant),<br><br>Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decisions: Supreme Court of the Komi Republic, 31/03/2021, 17/03/2021 and 24/03/2021. | 4,000,<br>to each applicant |

| No. | Application no.<br>Date of introduction | Applicant's name<br>Year of birth | Representative's name and location | Name of the public event<br>Location<br>Date | Administrative charges (code of administrative proceedings, CAO) | Penalty | Final domestic decision<br>Court Name<br>Date | Other complaints under well-established case-law | Amount awarded for pecuniary and non-pecuniary damage and costs and expenses (in euros)[1] |
|---|---|---|---|---|---|---|---|---|---|
| 7. | 36431/21<br>30/06/2021 | **Oleg Aleksandrovich VTOROY**<br>1995 | Memorial Human Rights Centre<br>Moscow | Rally in support of Mr A. Navalnyy<br><br>Moscow<br>02/02/2021 | article 20.2 § 6.1 of CAO | administrative detention of 9 days | Moscow City Court<br>04/02/2021 | Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 10.45 p.m. on 02/02/2021 to 2.00 p.m. on 03/02/2021, hearing in the applicant's administrative-offence case,<br><br>Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: Moscow City Court, 04/02/2021,<br><br>Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - The sentence of administrative detention imposed on the applicant on 03/02/2021 was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO | 5,000 |
| 8. | 36452/21<br>30/06/2021 | **Aleksandr Vasylovich AYUPOV**<br>1983 | Memorial Human Rights Centre<br>Moscow | Rally in support of Mr A. Navalnyy<br><br>Moscow<br>02/02/2021 | article 20.2 § 6.1 of CAO | administrative detention of 2 days | Moscow City Court<br>04/02/2021 | Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 10.40 p.m. on 02/02/2021 to 2.00 p.m. on 03/02/2021, hearing in the applicant's administrative-offence case,<br><br>Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: Moscow City Court, 04/02/2021,<br><br>Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO. | 5,000 |

| No. | Application no.<br>Date of introduction | Applicant's name<br>Year of birth | Representative's name and location | Name of the public event<br>Location<br>Date | Administrative charges (code of administrative proceedings, CAO) | Penalty | Final domestic decision<br>Court Name<br>Date | Other complaints under well-established case-law | Amount awarded for pecuniary and non-pecuniary damage and costs and expenses (in euros)[1] |
|---|---|---|---|---|---|---|---|---|---|
| 9. | 36455/21<br>30/06/2021 | **Ivar Askarovich TUGANBAYEV**<br>2000 | Memorial Human Rights Centre<br>Moscow | Rally in support of Mr A. Navalnyy<br><br>Moscow<br>02/02/2021 | article 20.2 § 6.1 of CAO | administrative detention of 7 days | Moscow City Court<br>30/03/2021 | Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances, from 11.30 p.m. on 02/02/2021 to 2.20 p.m. on 04/02/2021, hearing in the applicant's administrative-offence case; the applicant spent 2h 10 in the police van; he was not released after the record had been compiled,<br><br>Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: Moscow City Court, 30/03/2021,<br><br>Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO. | 5,000 |
| 10. | 36755/21<br>13/07/2021 | **Danil Andreyevich MATVEYEV**<br>2002 | Markin Konstantin Aleksandrovich<br>Velikiy Novgorod | Rally in support of Mr A. Navalnyy<br><br>Velikiy Novgorod<br>23/01/2021 | article 20.2 § 5 of CAO | community works of 20 hours | Novgorod Regional Court<br>04/03/2021 | Art. 5 (1) - unlawful detention - Escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 3.50 p.m. to 9.20 p.m. on 23/01/2021,<br><br>Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: Novgorod Regional Court, 04/03/2021. | 5,000 |
| 11. | 36887/21<br>05/07/2021 | **Nikolay Sergeyevich ANDRIYUK**<br>1986 | Zatonskaya Yuliya Vladimirovna<br>Lipetsk | Rally in support of Mr A. Navalnyy<br><br>Lipetsk<br>23/01/2021 | article 20.2 § 5 of CAO | fine of RUB 10,000 | Lipetsk Regional Court<br>25/02/2021 | Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 3.00 p.m. to 11.00 p.m. on 23/01/2021, | 4,000 |

| No. | Application no.<br>Date of introduction | Applicant's name<br>Year of birth | Representative's name and location | Name of the public event<br>Location<br>Date | Administrative charges (code of administrative proceedings, CAO) | Penalty | Final domestic decision<br>Court Name<br>Date | Other complaints under well-established case-law | Amount awarded for pecuniary and non-pecuniary damage and costs and expenses (in euros)[1] |
|---|---|---|---|---|---|---|---|---|---|
| | | | | | | | | Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: Lipetsk Regional Court, 25/02/2021. | |
| 12. | 36925/21<br>05/07/2021 | **Igor Anatolyevich ZHULIMOV**<br>1962 | | Rally in support of Mr A. Navalnyy<br><br>Penza<br>23/01/2021 | article 20.2 § 2 of CAO | fine of RUB 20,000 | Penza Regional Court<br>17/06/2021 | | 4,000 |
| 13. | 36938/21<br>16/07/2021 | **Danila Alekseyevich KLYUYEV**<br>2000 | Memorial Human Rights Centre<br>Moscow | Rally in support of Mr A. Navalnyy<br><br>Moscow<br>23/01/2021 | article 20.2 § 5 of CAO | fine of RUB 15,000 | Moscow City Court<br>30/03/2021 | Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 1.37 p.m. on 23/01/2021 to 00.10 a.m. on 24/01/2021; the applicant spent more than 5 hours in the police van,<br><br>Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: Moscow City Court, 30/03/2021. | 4,000 |
| 14. | 36980/21<br>16/07/2021 | **Omar Igorevich KHARCHILAVA**<br>2000 | Memorial Human Rights Centre<br>Moscow | Rally in support of Mr A. Navalnyy<br><br>Rostov-on-Don<br>31/01/2021 | article 20.2 § 6.1 of CAO | fine of RUB 10,000 | Rostov Regional Court<br>07/04/2021 | Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 2.30 p.m. on 31/01/2021 to 2.00 p.m. 01/02/2021, hearing in the applicant's administrative-offence case,<br><br>Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: Rostov Regional Court, 07/04/2021 | 4,000 |

| No. | Application no.<br>Date of introduction | Applicant's name<br>Year of birth | Representative's name and location | Name of the public event<br>Location<br>Date | Administrative charges (code of administrative proceedings, CAO) | Penalty | Final domestic decision<br>Court Name<br>Date | Other complaints under well-established case-law | Amount awarded for pecuniary and non-pecuniary damage and costs and expenses (in euros)[1] |
|---|---|---|---|---|---|---|---|---|---|
| 15. | 36995/21<br>16/07/2021 | **Anton Aleksanrovich BUYDALIN**<br>1987 | Memorial Human Rights Centre<br>Moscow | Rally in support of Mr A. Navalnyy<br><br>Moscow<br>31/01/2021 | article 20.2 § 6.1 of CAO | administrative detention of 7 days | Moscow City Court<br>18/02/2021 | Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 12.15 a.m. on 31/01/2021 to 8.30 p.m. on 01/02/2021, hearing in the applicant's administrative-offence case; the applicant spent 3 hours in the police van,<br><br>Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: Moscow City Court, 18/02/2021,<br><br>Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant by the court of first instance was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO. | 5,000 |
| 16. | 37668/21<br>27/06/2021 | **Daniel Edmundo VERDUGO NOSOV**<br>1992 | Bochilo Anna Yevgenyevna<br>Barnaul | Rally in support of Mr A. Navalnyy<br><br>Moscow<br>23/01/2021 | article 20.2 § 5 of CAO | fine of RUB 15,000 | Moscow City Court<br>24/03/2021 | Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence, from 4.30 p.m. to 6.30 p.m. on 23/01/2021, while the said record was drawn up only on 26/01/2021,<br><br>Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: Moscow City Court, 24/03/2021. | 4,000 |
| 17. | 37845/21<br>09/07/2021 | **Nikita Ruslanovich STARCHENKOV**<br>1992 | Antokhin Yevgeniy Vyacheslavovich<br>Moscow | Rally in support of Mr A. Navalnyy<br><br>Moscow<br>31/01/2021 | article 20.2 § 6.1 of CAO | administrative detention of 5 days | Moscow City Court<br>10/03/2021 | Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 3.00 p.m. on | 5,000 |

| No. | Application no.<br>Date of introduction | Applicant's name<br>Year of birth | Representative's name and location | Name of the public event<br>Location<br>Date | Administrative charges (code of administrative proceedings, CAO) | Penalty | Final domestic decision<br>Court Name<br>Date | Other complaints under well-established case-law | Amount awarded for pecuniary and non-pecuniary damage and costs and expenses (in euros)[1] |
|---|---|---|---|---|---|---|---|---|---|
| | | | | | | | | 31/01/2021 to 02/02/2021, hearing in the applicant's administrative-offence case,<br><br>Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: Moscow City Court, 10/03/2021,<br><br>Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO. | |
| 18. | 37871/21<br>13/07/2021 | **Aleksey Yanovich KLIMOVICH**<br>1992 | Aksenova Darya Dmitriyevna<br>Kolomna | Rally in support of Mr A. Navalnyy<br><br>Moscow<br>31/01/2021 | article 20.2 § 6.1 of CAO | administrative detention of 14 days | Moscow City Court<br>12/02/2021 | Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from on 3.00 p.m. on 31/01/2021 to 01/02/2021, hearing in the applicant's administrative-offence case,<br><br>Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: Moscow City Court, 12/02/2021. | 5,000 |
| 19. | 38171/21<br>16/07/2021 | **Oleg Leonidovich KONONENKO**<br>1993 | Memorial Human Rights Centre<br>Moscow | Rally in support of Mr A. Navalnyy<br><br>Vladivostok<br>31/01/2021 | article 20.2 § 5 of CAO | community works of 30 hours | Primorye Regional Court<br>27/04/2021 | Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 1.30 p.m. to 7.10 p.m. on 31/01/2021,<br><br>Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: Primorye Regional Court, 27/04/2021 | 4,000 |

| No. | Application no.<br>Date of introduction | Applicant's name<br>Year of birth | Representative's name and location | Name of the public event<br>Location<br>Date | Administrative charges (code of administrative proceedings, CAO) | Penalty | Final domestic decision<br>Court Name<br>Date | Other complaints under well-established case-law | Amount awarded for pecuniary and non-pecuniary damage and costs and expenses (in euros)[1] |
|---|---|---|---|---|---|---|---|---|---|
| 20. | 38193/21<br>14/07/2021 | **Aleksandr Sergeyevich ZAKHAROV**<br>1990 | Pershakova Yelena Yuryevna<br>Moscow | Rally in support of Mr A. Navalnyy<br><br>Moscow<br>31/01/2021 | article 20.2 § 6.1 of CAO | administrative detention of 15 days | Moscow City Court<br>03/02/2021 | Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 5.15 p.m. on 31/01/2021 to 01/02/2021,<br><br>Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: Moscow City Court, 12/02/2021,<br><br>Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO | 5,000 |
| 21. | 38868/21<br>18/07/2021 | **Yefim Nikolayevich TARASENKO**<br>1992 | Aksenova Darya Dmitriyevna<br>Kolomna | Rally in support of Mr A. Navalnyy<br><br>Moscow<br>02/02/2021 | article 20.2 § 6.1 of CAO | administrative detention of 10 days | Moscow City Court<br>06/04/2021 | Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 11.40 p.m. on 02/02/2021 to 03/02/2021, hearing in the applicant's administrative-offence case,<br><br>Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: Moscow City Court, 06/04/2021 | 5,000 |
| 22. | 38924/21<br>22/07/2021 | **Anton Yevgenyevich METAKOVSKIY**<br>1992 | Memorial Human Rights Centre<br>Moscow | Rally in support of Mr A. Navalnyy<br><br>Moscow<br>31/01/2021 | article 20.2 § 6.1 of CAO | administrative detention of 13 days | Moscow City Court<br>09/02/2021 | Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 1.30 p.m. on 31/01/2021 to 1.15 p.m. on 01/02/2021, hearing in the applicant's administrative-offence case, | 5,000 |

| No. | Application no.<br>Date of introduction | Applicant's name<br>Year of birth | Representative's name and location | Name of the public event<br>Location<br>Date | Administrative charges (code of administrative proceedings, CAO) | Penalty | Final domestic decision<br>Court Name<br>Date | Other complaints under well-established case-law | Amount awarded for pecuniary and non-pecuniary damage and costs and expenses (in euros)[1] |
|---|---|---|---|---|---|---|---|---|---|
| | | | | | | | | Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: Moscow City Court, 09/02/2021,<br><br>Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO. | |

[1] Plus any tax that may be chargeable to the applicants.